

25PSCV03003 25PSCV03003

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Case Number: 25PSCV03003 Hearing Date: July 16, 2026 Dept: G

Defendants Ansuya C Pithia, Jayant C Pithia,
and Hema J Pithia, Umesh C Pithia, and Uma U Pithia's Demurrer to Plaintiff Jose
Cruz's Complaint

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Defendants

Ansuya C Pithia, Jayant C Pithia, and Hema J Pithia, Umesh C Pithia, and Uma U
Pithia's Demurrer to Plaintiff Jose Cruz's Complaint is OVERRULED.

Defendants

are ordered to file an ANSWER in ten (10) days.

BACKGROUND

This

is a premises liability action. On

August 20, 2023, Defendants Ansuya C Pithia, Jayant C Pithia, and Hema J
Pithia, Umesh C Pithia, and Uma U Pithia (collectively, Defendants) allegedly
hired plaintiff Jose Cruz (Cruz) to fix a hole in the roof. Cruz allegedly fell and sustained injuries.

On

August 19, 2025, Cruz filed the Complaint, alleging causes of action for (1)
general negligence and (2) premises liability.

On

March 27, 2026, Defendants filed this demurrer, which is unopposed. On June 2 and 18, 2026, the court continued the demurrer to allow the parties to meet and confer.

The

demurrer is set for a case management conference and a continued hearing on the demurrer on July 16, 2026.

ANALYSIS

Defendants

demur to Cruz's Complaint. For the following reasons, the court OVERRULES the demurrer.

Legal

Standard

A

party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action."

(Code Civ. Proc., § 430.10, subd. (e).)

A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th

740, 747.) When considering demurrers,

courts accept all well pleaded facts as true.

(Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068,

1078.) The court should also draw

reasonable inferences in favor of the pleading subject to demurrer. (Kruss v. Booth (2010) 185 Cal.App.4th

699, 727.) The court should liberally

construe the complaint to bring substantial justice between the parties. (Addiego v. Hill (1965) 238 Cal.App.2d

842, 845.) To sustain a demurrer,

defects must be apparent on the face of the pleading or via proper judicial

notice. (Donabedian v. Mercury Ins.

Co. (2004) 116 Cal.App.4th 968, 994; SKF Farms v. Super. Ct. (1984)

153 Cal.App.3d 902, 905, stating, "A demurrer tests the pleadings alone and not

the evidence or other extrinsic matters.

Therefore, it lies only where the defects appear on the face of the

pleading or are judicially noticed."; Hahn, supra, at 747,

stating, "The only issue involved in a demurrer hearing is whether the

complaint, as it stands, unconnected with extraneous matters, states a cause of

action.”)

Discussion

Defendants

argue that the Complaint fails to allege sufficient facts to support causes of action for negligence and premises liability.

The court disagrees.

“The

elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages.” (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) “Premises

liability is grounded in the possession of the premises and the attendant right to control and manage the premises.” (Kesner

v. Super. Ct. (2016) 1 Cal.5th 1132, 1158, cleaned up.) “Before liability may be thrust on a landlord for a third party’s injury due to a dangerous condition on the land, the plaintiff must show that the landlord had actual knowledge of the dangerous condition in question, plus the right and ability to cure the condition.” (Garcia v. Holt (2015) 242 Cal.App.4th 600, 604.)

For

the first element, the Complaint alleges that Defendants owed Cruz a duty arising from their “exclusive custody and control” of the premises to keep it in a “good and safe condition.” (Compl.,

p. 5.) For the second element, Cruz

alleges that Defendants kept their property “in a dangerous and unsafe condition.” (Compl., p. 5.) For the third and fourth elements, the

Complaint alleges that Defendants hired Cruz to fix a hole in the roof and that the “defective, broken, cracked[,] and/or deteriorated roof” caused him to slip and fall and injure himself. (Compl., pp. 5–6.)

Thus,

the court finds the Complaint alleges sufficient facts for each of the elements of negligence and premises liability.

Therefore,

the court OVERRULES the demurrer as to the first and second causes of action.

CONCLUSION

For

these reasons, the demurrer is OVERRULED.

Defendants

are ordered to file an ANSWER in ten (10) days.